



General Assembly

Substitute Bill No. 5148

February Session, 2026



AN ACT CONCERNING THE EXISTENCE OF AND METHODS OF ADDRESSING RACIAL IMBALANCE IN PUBLIC SCHOOLS.

Be it enacted by the Senate and House of Representatives in General Assembly convened:

1 Section 1. (*Effective July 1, 2026*) (a) The Department of Education shall
2 study the effectiveness of the method of addressing racial imbalance
3 specified in sections 10-226a to 10-226e, inclusive, of the general statutes
4 and the regulations adopted pursuant to said sections. Such study shall
5 include, but not be limited to, (1) an examination of the effectiveness of
6 various strategies implemented to correct racial imbalances in the long
7 term and short term, (2) a cost benefit analysis of implementing such
8 strategies, (3) the impact on pupils of racial minorities, as described in
9 section 10-226a of the general statutes, as a result of such strategies, such
10 as access to neighborhood schools and educational outcomes, and (4)
11 suggestions for alternative methods for correcting racial imbalances.

12 (b) Not later than January 1, 2028, the Department of Education shall
13 submit a report, in accordance with the provisions of section 11-4a of the
14 general statutes, to the joint standing committee of the General
15 Assembly having cognizance of matters relating to education on the
16 findings of the study conducted pursuant to subsection (a) of this
17 section.

18 Sec. 2. Section 10-226b of the general statutes, as amended by section

19 28 of public act 26-1, is repealed and the following is substituted in lieu
20 thereof (*Effective July 1, 2026*):

21 (a) Whenever the State Board of Education finds that racial imbalance
22 exists in a public school, it shall notify in writing the board of education
23 having jurisdiction over said school that such finding has been made,
24 except the State Board of Education shall not notify a board of education
25 of such finding until July 1, [2030] 2028.

26 (b) As used in sections 10-226a to 10-226e, inclusive, "racial
27 imbalance" means a condition wherein the proportion of pupils of racial
28 minorities in all of the grades of a public school of the secondary level
29 or below taken together substantially exceeds or falls substantially short
30 of the proportion of such public school pupils in all of the same grades
31 of the school district in which said school is situated taken together.

32 Sec. 3. Section 10-226c of the general statutes, as amended by section
33 29 of public act 26-1, is repealed and the following is substituted in lieu
34 thereof (*Effective July 1, 2026*):

35 (a) Any board of education receiving notification of the existence of
36 racial imbalance as specified in section 10-226b, as amended by public
37 act 26-1 and this act, shall forthwith prepare a plan to correct such
38 imbalance and file a copy of said plan with the State Board of Education,
39 except such board of education shall not be required to prepare and file
40 said plan until July 1, [2030] 2028. Said plan may be limited to
41 addressing the imbalance existing at any school and need not result in a
42 district-wide plan or district-wide pupil reassignment. A school district
43 may request an extension of time in cases in which the number of
44 students causing said imbalance is fewer than five students at a school.

45 (b) Any plan submitted by the board of education of any town under
46 sections 10-226a to 10-226e, inclusive, shall include any proposed
47 changes in existing school attendance districts, the location of proposed
48 school building sites as related to the problem, any proposed additions
49 to existing school buildings and all other means proposed for the
50 correction of said racial imbalance. The plan shall include projections of

51 the expected racial composition of all public schools in the district. The
52 plan may include provision for cooperation with other school districts
53 to assist in the correction of racial imbalance.

54 Sec. 4. Section 10-226d of the general statutes, as amended by section
55 30 of public act 26-1, is repealed and the following is substituted in lieu
56 thereof (*Effective July 1, 2026*):

57 Upon receipt of any plan required under the provisions of subsection
58 (b) of section 10-226c, as amended by public act 26-1 and this act, the
59 State Board of Education shall review said plan. If it determines that the
60 plan is satisfactory, it shall approve the plan and shall provide to the
61 board of education such assistance and services as may be available. The
62 board of education shall submit annual reports on the implementation
63 of the approved plan, as the State Board of Education may require. The
64 State Board of Education shall not take action on any plan received on
65 or after July 1, 2024, until July 1, [2030] 2028.

This act shall take effect as follows and shall amend the following sections:		
Section 1	<i>July 1, 2026</i>	New section
Sec. 2	<i>July 1, 2026</i>	10-226b
Sec. 3	<i>July 1, 2026</i>	10-226c
Sec. 4	<i>July 1, 2026</i>	10-226d

ED *Joint Favorable Subst.*